



File No.: EXP202308198

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On May 7, 2023, a complaint was received by this Agency filed by A.A.A. (hereinafter, the complainant) against ING BANK N.V., BRANCH IN SPAIN (hereinafter, the respondent) for not having duly attended to their right of access.

The complainant states that, as a result of an internal procedure, the respondent requested the provision of various information and documentation regarding certain expenses and transfers of the complainant while residing in ***LOCALITY.1, in addition to being married to a person (...). However, despite having provided all the requested documentation, the respondent, without prior notice, limited the operation of their account and unilaterally terminated the service contract. The complainant states that, following the events, on November 13, 2022, they requested the respondent to access "all the data that your entity holds regarding me, including all movements of all the accounts I have had with you, as well as any risk assessments or similar, feedback, comments, incidents, appraisals, analyses, notes of any kind that pertain to me." Furthermore, in their request, they added the following: "In particular, I request a copy of the complete evaluation of all the documentation that was sent as a result of your request and that was apparently considered 'invalid', as well as to know the entities with which my data has been shared and to know 'the data that has been shared, the date, and the purpose'."

On November 25, 2022, they received a response providing the personal data concerning them that the entity holds (identifying and contact data), as well as annexes related to the possible recipients of their data and the profiling carried out by the entity, based on the products or services contracted by customers or based on their personal situation, referring to financing and credit profiling, debt recovery, marketing, fraud prevention analysis, and money laundering, among others.

The complainant considers that the response received is generic and that the respondent has not addressed the movements of their accounts or the risk assessments and appraisals regarding them, which is why, on January 21, 2023, they reiterated their access request, receiving a response on February 22, 2023, indicating that, due to the fact that their request concerns "a large amount of information," they must specify it. Furthermore, it is...

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It adds that the right of access does not encompass all the requested aspects, such as the entirety of the transactions of an account, nor does it include "feedback, comments, incidents, assessments, or analyses," and it is indicated that access requests cannot be unfounded or excessive. Finally, the responding party indicates that they believe that "the evaluation of the documentation that has been sent is also not covered by the right of access."

Along with the complaint, a copy of the email messages related to the access requests and a copy of the responses received through the same channel are provided.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the responding party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The responding party stated, in summary, that

"On November 25, 2022, ING sent a certified letter by postal mail in response to said right of access, as evidenced in the submitted screens. A copy of the aforementioned letter is attached as Document number 2. Subsequently, on December 21, 2022, A.A.A. contacted us to inform us that they had not

received the letter previously sent by ING, so it was resent via email. A few days later, it was confirmed that all the emails were returned, so we contacted A.A.A. to arrange for the letter to be sent by postal mail, as shown in the screens of the submitted report.

Finally, the letter was resent to a postal address provided by A.A.A., and on January 21, a new email was received from A.A.A. expressing dissatisfaction with the response given, as it was not fully addressed. On February 22, 2023, ING sent a new response requesting that the requested information be narrowed down (...).

A copy of these communications is attached through screens included in the submitted report as Document number 1."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied.

In accordance with Articles 64.1 and 65.5 of the LOPDGDD, the decision on the admission or inadmission of the complaint must be notified to the complaining party within three months. If this notification does not occur after this period, when the complaint concerns the lack of attention to a request for the exercise of rights, the procedure will be considered initiated from the date on which three months have elapsed since the complaint was received by the Agency.

These provisions also apply to procedures that the AEPD must process in the exercise of the powers conferred on it by other laws. As stated, and considering that the complaint was filed at

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This Agency on May 7, 2023, considers the procedure for addressing the request for the exercise of rights to have commenced on August 7, 2023. The respondent was granted a hearing procedure, to present any allegations deemed appropriate within ten working days, with a written submission received by this Agency on February 2, 2024, which, in summary, reiterated what had been previously stated.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including enforcing the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in

Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proving that the response had been provided to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on August 7, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

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IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts relating to the right of access will be analyzed and assessed, excluding the other issues raised.

Article 23 of the GDPR, Limitations, states that

“1. The law of the Union or of the Member States applicable to the controller or the processor may limit, through legislative measures, the scope...

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of the obligations and rights established in Articles 12 to 22 and Article 34, as well as in Article 5 to the extent that its provisions correspond to the rights and obligations contemplated in Articles 12 to 22, when such limitation essentially respects fundamental rights and freedoms and is a necessary and proportionate measure in a democratic society to safeguard:

- a) the security of the State;
- b) defense;
- c) public safety;
- d) the prevention, investigation, detection, or prosecution of criminal offenses or the enforcement of criminal sanctions, including protection against threats to public safety and their prevention;
- e) other important objectives of general public interest of the Union or a Member State, particularly a significant economic or financial interest of the Union or a Member State, including in the areas of taxation, budgeting, and monetary policy, public health, and social security;
- f) the protection of judicial independence and judicial proceedings;
- g) the prevention, investigation, detection, and prosecution of violations of ethical standards in regulated professions;
- h) a supervisory, inspection, or regulatory function linked, even occasionally, to the exercise of public authority in the cases contemplated in letters a) to e) and g);
- i) the protection of the data subject or the rights and freedoms of others;
- j) the enforcement of civil claims.

2. In particular, any legislative measure indicated in paragraph 1 shall contain, at a minimum, specific provisions regarding:

- a) the purpose of the processing or categories of processing;
- b) the categories of personal data concerned;
- c) the scope of the established limitations;
- d) the safeguards to prevent unlawful or abusive access or transfers;
- e) the determination of the controller or categories of controllers;

- f) the retention periods and applicable safeguards taking into account the nature, scope, and objectives of the processing or categories of processing;
- g) the risks to the rights and freedoms of the data subjects, and
- h) the right of the data subjects to be informed about the limitation, unless it may be detrimental to the purposes of this.

The provisions of this article are developed through specific sectoral regulations, which determine how these limitations apply regarding the exercise of rights, with the data controller being required to respond to the request for the right of access in the terms established in the corresponding sectoral regulation.

In this case, from the examination of the documentation provided, it has been established that the claimant requested access to their personal data from the respondent, and that the latter granted access without taking into account the provisions established in the sectoral legislation in this regard. Consequently, it is appropriate to uphold the claim presented so that access is granted or the request is denied with justification and reasoning.

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In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge ING BANK N.V., BRANCH IN SPAIN with NIF W0037986G, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to ING BANK N.V., BRANCH IN SPAIN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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